

Why Digital Asset Market Structure Legislation Is Needed Now

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About CCI

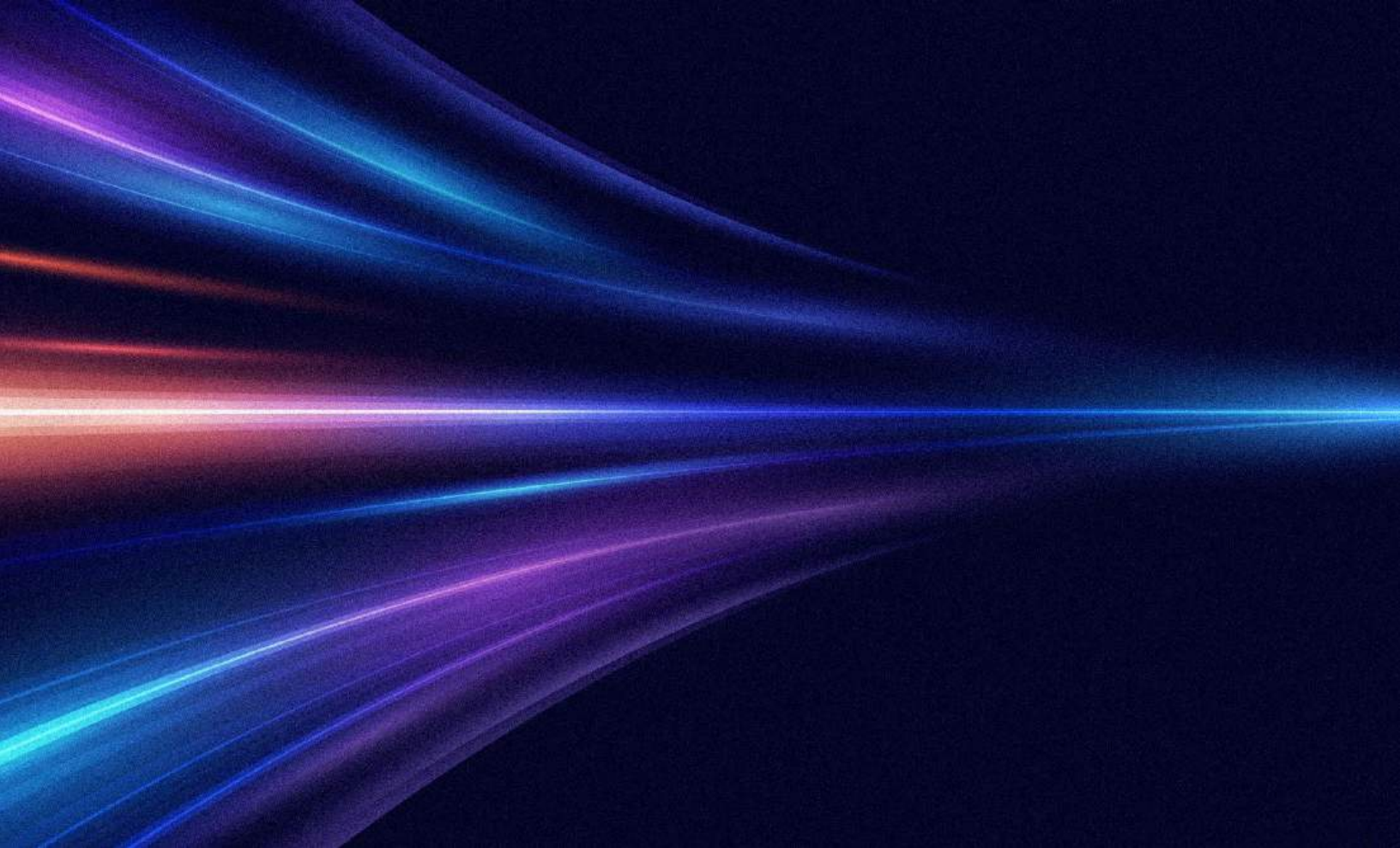
CCI is a global alliance of the world's leading crypto exchanges, asset managers, infrastructure providers, institutional investors, stablecoin issuers, banks, and fintech companies. Our members collectively serve tens of millions of U.S. customers, manage trillions of dollars in assets, and employ thousands of American workers. We support a fair and sensible digital asset regulatory framework because we believe that greater clarity will foster compliance, enable consumer use cases, and drive continued industry development here in the United States.

Authors

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July 2026

www.cryptoforinnovation.org



I. Introduction

Introduction

Crypto represents the present and future of global digital finance.

A failure to act now will cede the United States' historic leadership of market regulation and innovation to other jurisdictions and will threaten U.S. dollar dominance.

- As a signal of crypto's growing importance to global finance, there is a growing convergence between the "TradFi" and crypto industries, with financial services companies across the value chain – including banks, asset managers, financial market infrastructure, payment providers, fintechs and investors – incorporating blockchain-enabled solutions.¹
- As digital assets continue to mature as a globally significant market, other jurisdictions have outpaced the United States, resulting in an outsized share of trading activity, investment, influence, and control being outsourced.
- As Treasury Secretary Scott Bessent has noted, "clear rules, credible enforcement and a willingness to adapt to innovation have made the American approach to market regulation the world standard... But maintenance of this leadership is far from guaranteed."²

This report is a companion piece to our two-page brief [Why Digital Asset Market Structure Legislation Is Needed Now](#).

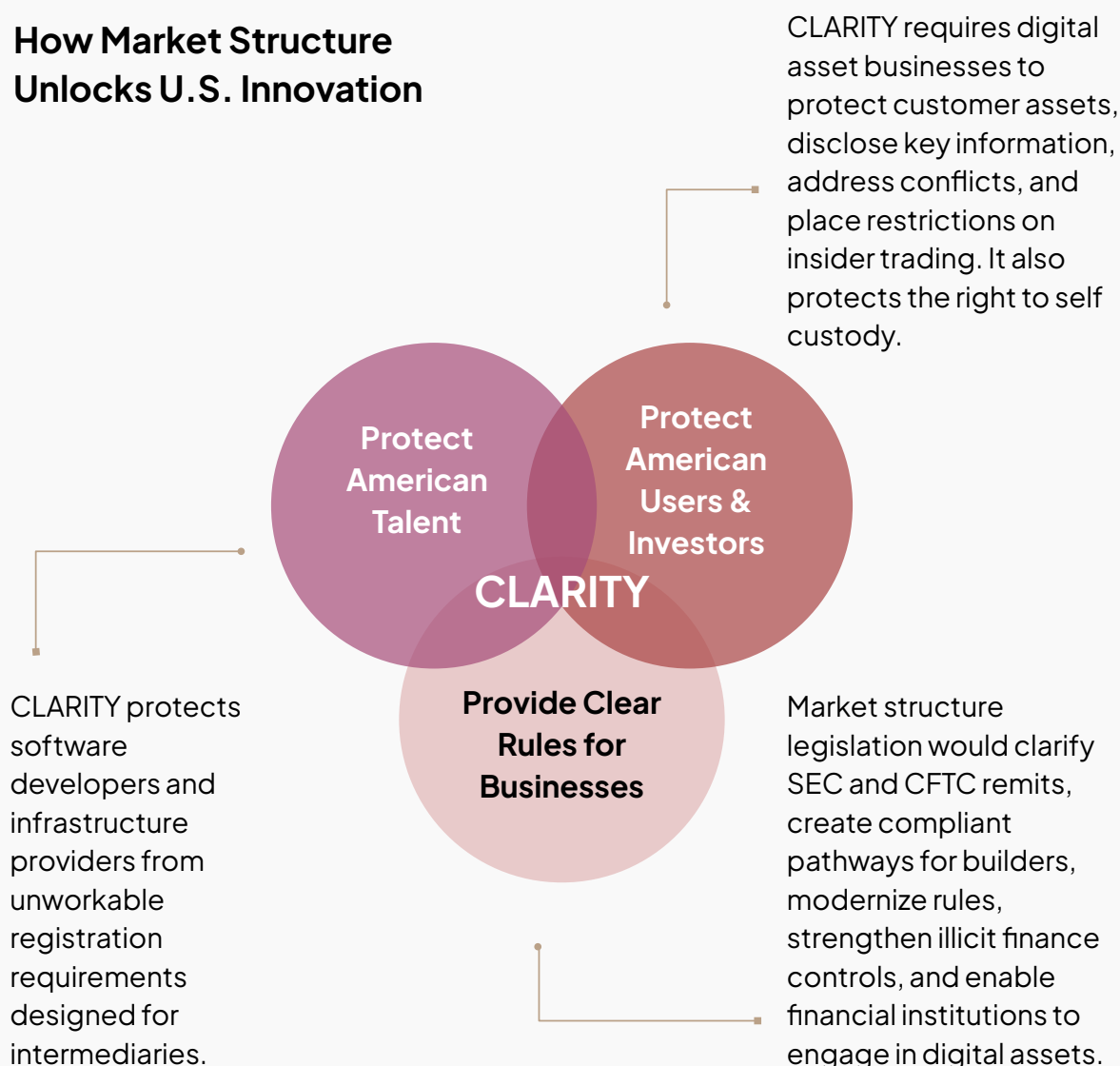
When Congress provides regulatory clarity, the market responds quickly.

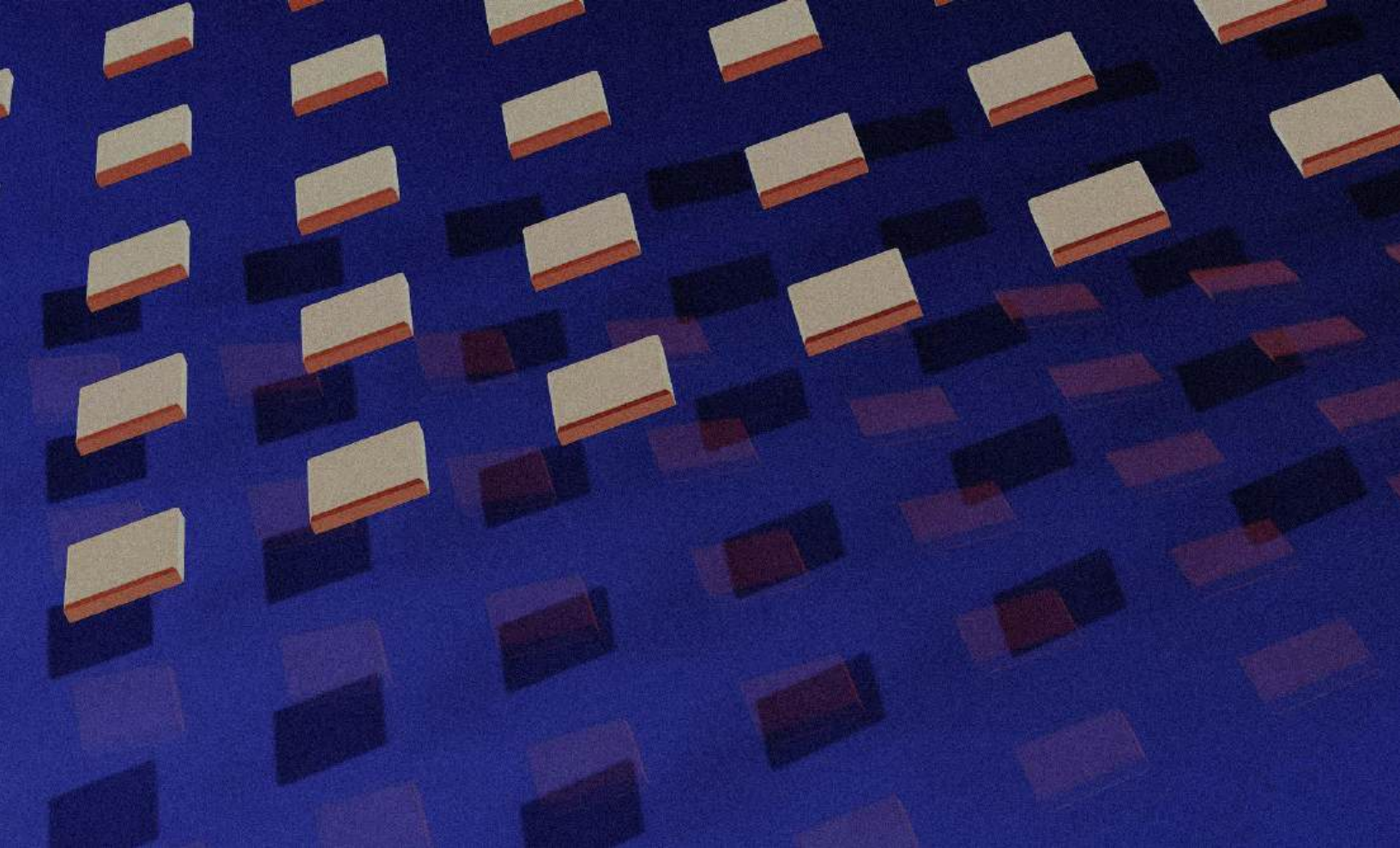
- **Market structure legislation is needed to provide regulatory clarity, strengthen consumer protections, and create clear rules for entrepreneurs and businesses**—and avoid ceding further innovation, investment, and market activity to foreign jurisdictions.
- Foreign jurisdictions including, among others, the EU, Singapore, and the UAE have already enacted market structure

regimes, and it is imperative for the U.S. to act now to ensure future leadership.

- Just as GENIUS has driven user adoption and institutional interest in stablecoins, clear rules for the broader digital asset ecosystem will spur innovation and investment in America.

How Market Structure Unlocks U.S. Innovation





II. The Scale of Crypto's Importance

The Scale of Crypto's Importance

Crypto is a globally important market, with rapidly growing adoption within the U.S. at the retail and institutional levels.

Currently, the U.S. leads in global financial markets.

- This leadership made U.S. markets the gravitational center for global capital, giving American regulatory standards influence far beyond U.S. borders.
- U.S. historic leadership of important markets is clear:
 - The U.S. share of the global equities market cap is 50%³
 - The U.S. dollar is used in 88% of global currency trades⁴
 - The market cap of publicly listed U.S. companies is 4 times higher than that of China.⁵

EQUITIES

50% U.S. share of global market cap

FOREIGN EXCHANGE

88% The U.S. dollar is used in nearly 90% of global currency trades

LISTED COMPANIES

4X Market cap of U.S. publicly listed companies vs. China

The total crypto asset market capitalization is \$2.6 trillion (as of July 2026).⁶

- This figure does not capture the economic impact of developers, small businesses, and innovators supporting this growing ecosystem, which represent significant additional economic activity.
- In just 15 years, crypto's total market capitalization has reached the equivalent of approximately 2.2% of the total global equity market⁷, or 10% of the total gold market.⁸

**\$2.6
trillion**

**TOTAL GLOBAL CRYPTO
MARKET CAPITALIZATION**



Retail crypto adoption has significantly increased over the past decade.

- In the U.S. alone, 25% of American adults, or nearly 70 million people, already own cryptocurrency – an increase of 12 million people over the past year.⁹
- 54% of American crypto holders say it has increased their financial independence, while 40% currently use crypto to make purchases.¹⁰
- A recent poll found 70% of Americans believe the U.S. should have already passed crypto legislation, demonstrating widespread support for bringing digital assets under clear rules of the road.¹¹

1 in 4

**Americans own
cryptocurrency**

54%

**Americans say crypto
has increased their
financial
independence**

40%

**Americans use
crypto to make
purchases**



Credit: Creative Commons License

Adoption by businesses is also growing.

- 4 in 10 small business merchants already accept digital assets as payment, with 4 in 5 merchants agreeing that accepting crypto could help them attract new customers.¹²

4 in 5

**Merchants agree that
accepting crypto
could attract new
customers**

- According to Deloitte, as of mid-2025 nearly 1 in 4 surveyed chief financial officers say their finance functions will be using digital currency within two years, citing benefits including enhanced protection of customer privacy and improved cross-border transactions.¹³
 - Looking beyond payments, surveyed CFOs also cited supply chain tracking (52%), hedging (44%), capital raising (42%), and payroll (29%) as business cases.¹⁴

1 in 4

**Chief financial officers
say their finance
functions will use
digital currency**

- Reflecting the broad appeal of crypto use cases to U.S. businesses, the top five sectors adopting cryptocurrencies include telecommunications, education, real estate, financial services, and technology.¹⁵

- According to a recent report by the U.S. Chamber of Commerce:

- 75% of small business owners said regulatory clarity would accelerate adoption.
- 84% of small business owners indicate a willingness to consider using cryptocurrency or stablecoins if it was easy to implement into their business.
- 73% of small business owners expect crypto to increase as a business payment method, while 66% expect stablecoin use to increase.¹⁶
- While small business owners focus on accepting crypto payments, applications for blockchain range across their companies to include operational and legal use cases such as supply chain tracking, security, loyalty programs, and smart contracts/automation.¹⁷

Small Business owners want clarity and simple rails:

75% Regulatory clarity would accelerate adoption.

73% Expect crypto to increase as a business payment method.

84% Would consider using crypto or stablecoins if easy to implement.

66% Expect stablecoin use to increase.

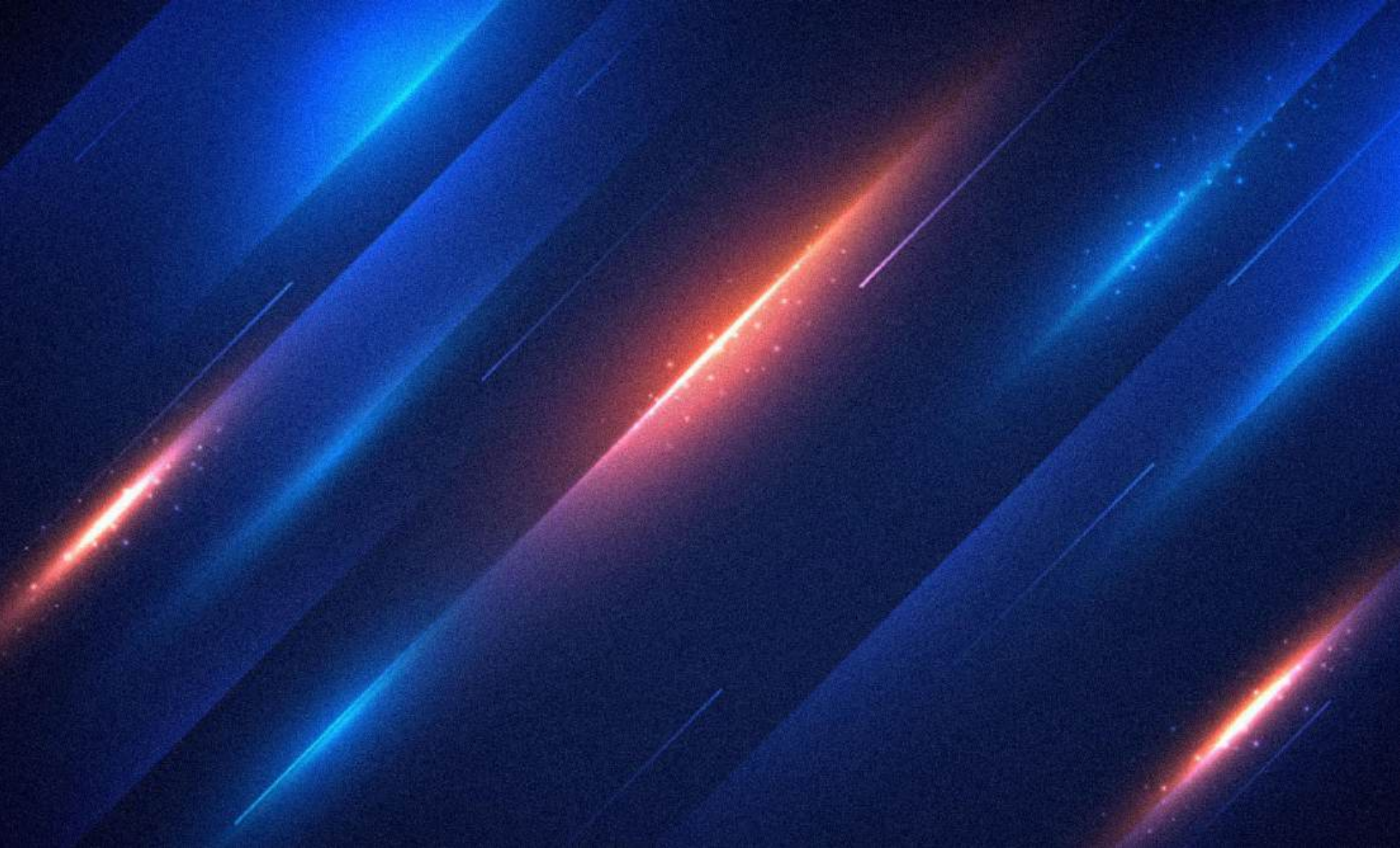
Non-financial use cases are also growing in national importance.

- These include so-called “DePIN” (decentralized physical infrastructure providers) that offer decentralized approaches to critical services including telecommunications, data storage, and compute power.
- For example, Helium Mobile, a Solana blockchain powered decentralized telecommunications company, is rapidly emerging as a significant disruptor in the U.S. telecommunications industry, serving over 2 million average daily users as of Q4 2025 and partnering with major carriers like T-Mobile and AT&T.¹⁸ It uses blockchain to manage hundreds of thousands of network hotspots.¹⁹



A Helium mobile Hotspot, which is coordinated via blockchain to service a low-cost mobile network.

Credit: Crypto Council for Innovation



III. Ceding Influence to Other Jurisdictions

Ceding Influence to Other Jurisdictions

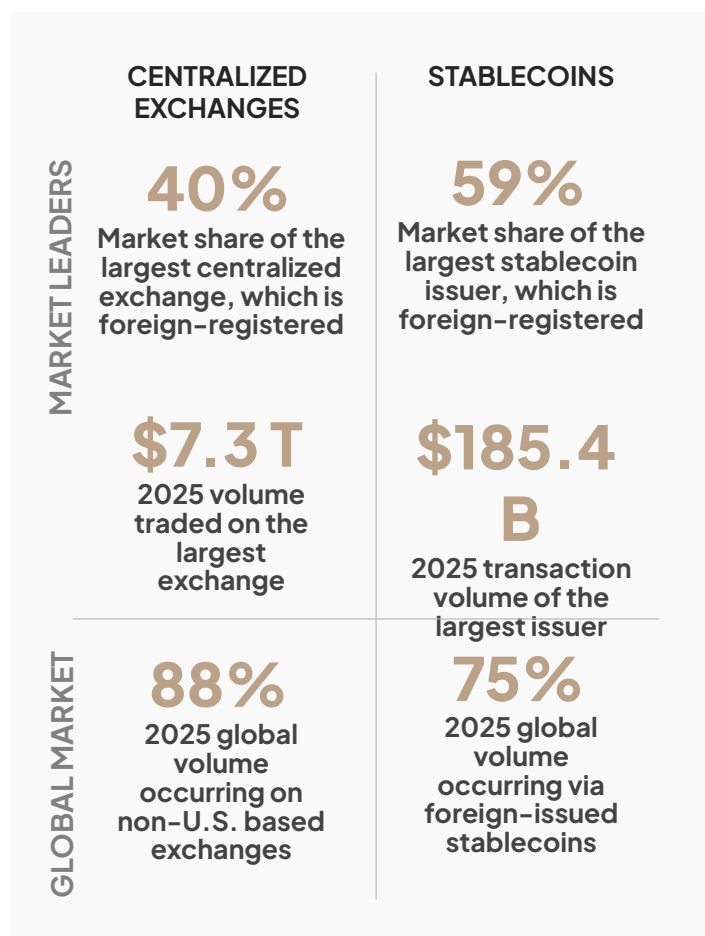
The global crypto industry's center of gravity is leaving the United States – incentivized by clearer regulatory regimes in foreign jurisdictions.

Crypto's center of gravity is already outside of the United States.

- Without clear, durable rules, that center of gravity will not shift back home.
- The majority of crypto activity is occurring on foreign-registered exchanges and platforms.
- The world's largest centralized exchange and stablecoin issuer are both foreign-registered entities.

- In particular, comprehensive regulatory frameworks implemented in the European Union, Hong Kong, United Arab Emirates, and Singapore have provided clarity for digital asset businesses that has encouraged relocation and expansion in those jurisdictions (see graphic on following page).

See section "[Repatriation to U.S. and Expanding Investment Due to More Supportive Regulatory Momentum](#)" for a discussion of nascent activity around firms repatriating to the U.S. following passage of the GENIUS Act.



Source: CoinGecko

Leading Foreign Jurisdictions Supportive of Crypto²⁰

European Union

Regulatory Development

- The EU adopted its comprehensive Markets in Crypto-Assets Regulation in April 2023, with stablecoin rules taking effect June 2024 and the full CASP licensing regime live December 30, 2024.
- A single MiCA license provides passporting rights across all 27 member states.
- MiCA completed its transition period on July 1, 2026 (e.g., any firm providing crypto services without MiCA authorization will be in breach of EU law).

Industry Growth

- Since the adoption of MiCA rules, approximately 180 CASP licenses and 40 stablecoin licenses have been issued across EU member states since December 30, 2024.
- MiCA-compliant businesses saw a 45% increase in institutional investments compared to non-compliant platforms.
- MiCA has increased bank participation in crypto, with up to 55 banks in Europe having integrated cryptocurrency-related services.

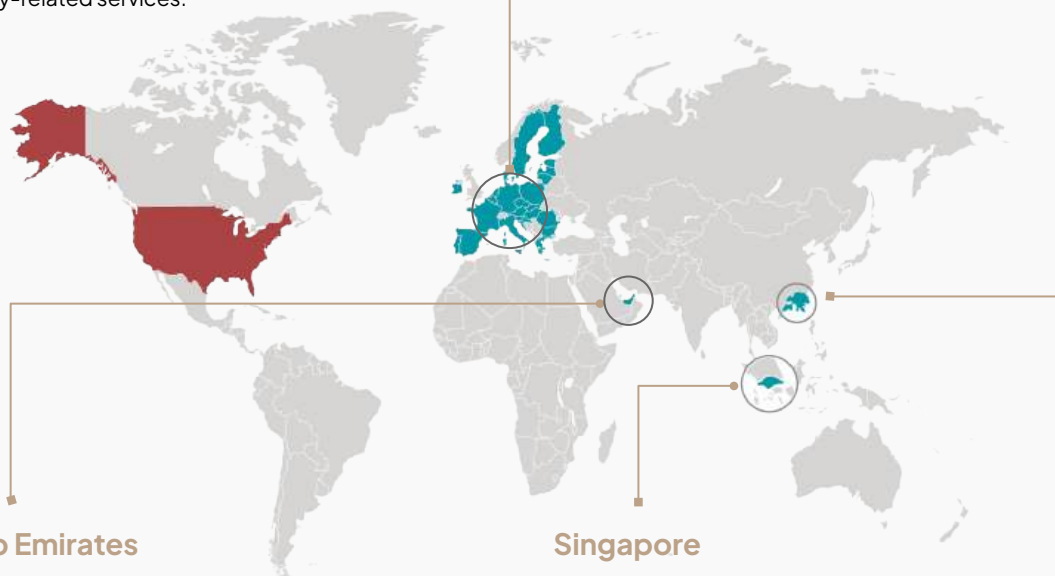
Hong Kong

Regulatory Development

- Hong Kong introduced mandatory VASP/VATP licensing for all centralized exchanges effective June 2023 — the first jurisdiction in Asia to permit licensed retail investor access for non-security tokens.
- Hong Kong passed the Stablecoin Ordinance (Cap. 656) in May 2025, introducing Asia's first comprehensive regulatory framework for fiat-backed stablecoins.
- Hong Kong also offers tax competitiveness, with zero capital gains tax on digital assets.

Industry Growth

- By February 2025, nine entities had been granted Hong Kong VASP licenses, with a simplified assessment procedure introduced in January 2025 to accelerate approvals.
- Hong Kong is home to 175 blockchain application or software firms and 111 digital asset and cryptocurrency companies, which marked 250% and 30% increases, respectively, since 2022.
- Digital assets and tokenized asset transaction volumes processed by banks reached HK\$26.1 billion (US\$3.3 billion) in the first half of 2025, representing year-on-year growth of 233%.



United Arab Emirates

Regulatory Development

- The UAE implemented the world's most pro-crypto regulatory stack, starting with Abu Dhabi Global Market's (ADGM) crypto framework in 2018, followed by the creation of Dubai's dedicated Virtual Assets Regulatory Authority (VARA) in 2022, and a complete VAT exemption on crypto transactions in October 2024.

Industry Growth

- More than 1,800 crypto companies were based in the UAE as of 2023, employing more than 8,600 people. Abu Dhabi's ADGM reported a 67% increase in new licenses in Q1 2025 compared to Q1 2024.
- Since the war with Iran started, Binance has begun moving staff to other friendly jurisdictions, including Hong Kong, Tokyo, Kuala Lumpur, and Bangkok – not the U.S.

Singapore

Regulatory Development

- Singapore established its Payment Services Act licensing framework for digital payment token providers in 2019, years ahead of comparable U.S. action, making it a preferred domicile for major exchanges and institutional crypto infrastructure.

Industry Growth

- As of January 2026, MAS had granted 36 Major Payment Institution licenses for digital payment token services and issued 13 new licenses in 2024 alone, significantly more than prior years. Coinbase, Circle, Paxos, BitGo, Standard Chartered, Robinhood, and Ripple all hold MAS licenses and have established substantive operations in the city-state. The country hosts more than 700 operational Web3 companies, and as of 2025 had the highest density of crypto jobs per capita in the world.

Implications for U.S. Dollar Dominance

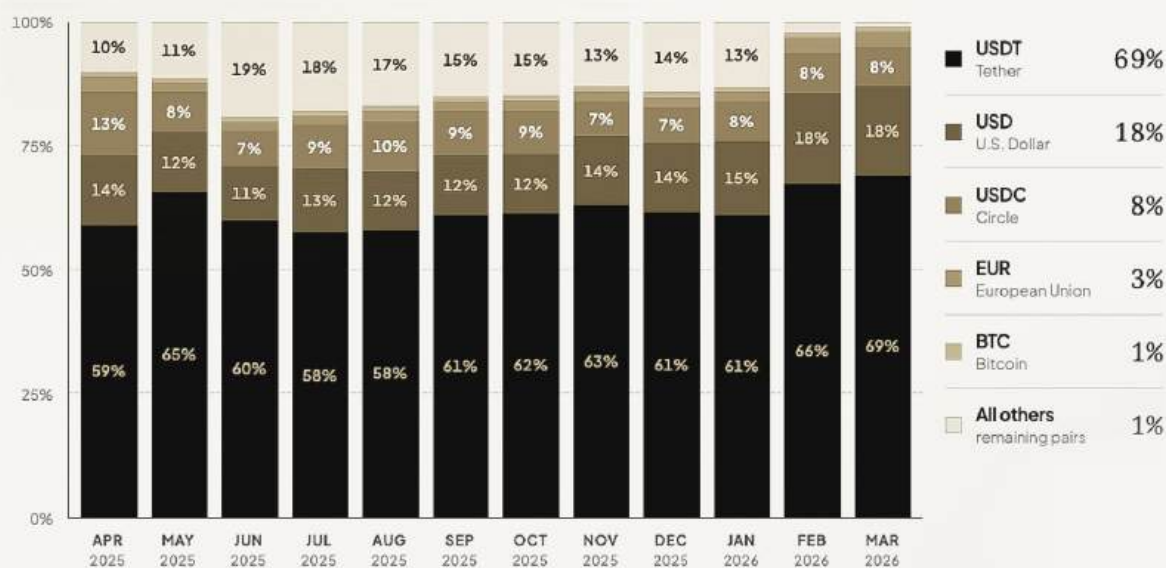
The majority of global dollar-pegged trading volume does not occur via U.S. regulated instruments.

- Across centralized exchanges (see following section for more detail on centralized exchanges), the majority of spot trading volume across all trading pairs is done via dollar-pegged stablecoins.²¹
 - However, while dollar-pegged instruments represent a majority of trading activity in global markets, the majority flows through an instrument (USDT, issued by foreign-based issuer Tether) that sits outside of U.S. supervisory jurisdiction.
- Because current stablecoin volume flows through a foreign-based issuer outside of U.S. jurisdiction, the U.S. forgoes the direct supervisory oversight, sanctions enforcement, or financial intelligence that has historically come with being the world's reserve currency.

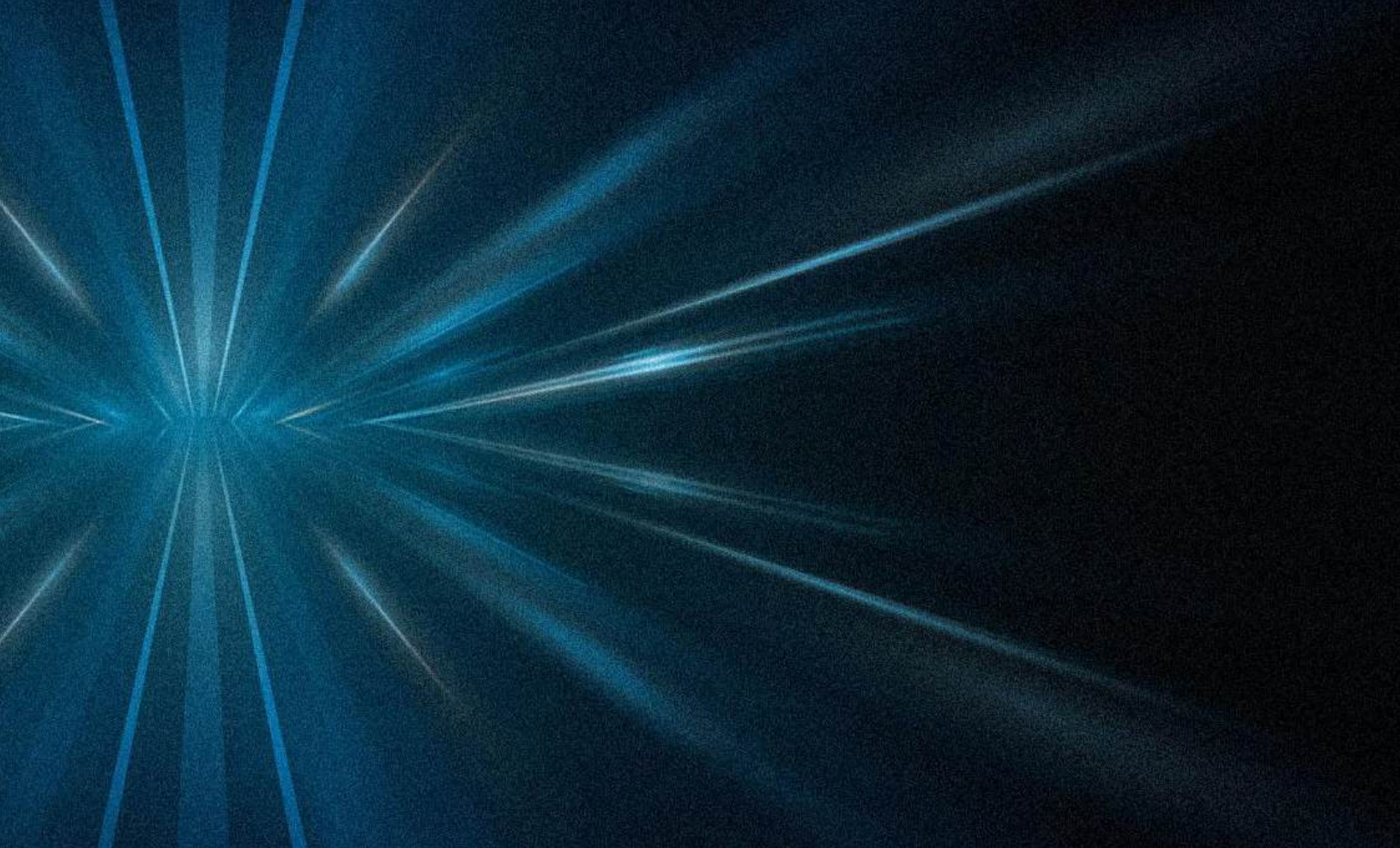
Share of monthly spot volume by quote asset

% OF TOTAL · APR 2025 → MAR 2026

CATEGORIES · MAR '26



Source: CCI Analysis of data from The Block²²



IV. Offshoring

Offshoring

The highest-leverage parts of the market already have an offshore center of gravity. Without comprehensive market structure legislation, this center will not shift back.

The jurisdictions actively competing for global market share have greater regulatory clarity than that of the U.S.

- While North America and Europe dominate onchain activity in absolute terms (receiving over \$2.2 trillion and \$2.6 trillion in 2025, respectively), growth rates in other regions are outpacing the U.S.²³
- Achieving a “golden age for digital assets” in the U.S. requires a comprehensive federal legislative framework.
 - Congress must act to prevent fragmentation and regulatory ambiguity; clear jurisdictional boundaries and CFTC spot authority will strengthen U.S. markets.²⁴

LIMITED MARKET SHARE

Only 12% market share of the top 10 centralized exchanges are U.S. based

The centralized exchange (CEX) market is the engine of crypto liquidity, price discovery, and user trust. That engine is almost entirely foreign-owned.

DIMINISHING SHARE OF GROWTH

Only 2–5% of annual CEX volume growth occurred in the U.S. from 2024 – 2025

The vast majority of on-exchange trading is now growing outside the U.S.

OFFSHORING TALENT

Only 19% of crypto developers are located in the U.S.

The U.S. share of global developers has dropped by 51% over nearly ten years (from 38% share to 19%).

Centralized Exchanges (CEX)

The exchange market is the engine of crypto liquidity, price discovery, and user trust. That engine is almost entirely foreign-owned.

- In 2025, across the top 10 centralized exchanges by market share, only two were U.S. based – Coinbase and OKX (coming in at #8 and #7, see table below; OKX only domiciled in the U.S. for the first time in 2025 as the regulatory environment became more clear, spending its prior development time as a foreign-based exchange).²⁵
- In 2025, Binance dominated centralized exchanges with a 39.2% share of the top 10 venues' combined trading volume, pushing \$7.3 trillion in volume as the top ten exchanges totaled \$18.7 trillion.²⁶ The second largest centralized exchange, Bybit, trailed with 8.1% market share, recording \$1.5 trillion in volume.²⁷

Top 10 Centralized Exchanges by Market Share (2025)

Rank	Exchange	Market Share (% of top 10 exchanges)	Headquarters / Domicile	
1	Binance	39.2%	Cayman Islands / Abu Dhabi, UAE	Foreign
2	Bybit	8.1%	Dubai, UAE	Foreign
3	MEXC	7.8%	Seychelles	Foreign
4	Gate	7.5%	Cayman Islands	Foreign
5	Crypto.com	7.2%	Singapore	Foreign
6	Bitget	6.4%	Seychelles	Foreign
7	OKX	6.3%	San Jose, CA <i>(redomiciled to the U.S. April 2025, but spent nearly its prior history as a foreign exchange)</i> ³²	U.S.-based (as of 2025)
8	Coinbase	6.1%	San Francisco, CA	U.S.-based
9	HTX	6.0%	Seychelles	Foreign
10	Upbit	5.5%	Seoul, South Korea	Foreign

Source: CoinGecko, 2025; domicile data added by CCI

- This split of exchanges is at odds with the scale of adoption and crypto activity in the U.S.

- In the U.S. alone, 25% of American adults, or almost 70 million people, already own cryptocurrency.²⁸
- According to Chainalysis, as of 2024 North America represented 22.5% of global onchain activity.²⁹

- The majority of CEX trading growth and adoption is occurring in jurisdictions outside of the U.S., suggesting that these trends will continue without the U.S.

addressing the underlying regulatory uncertainty.

- From 2020 to 2025, jurisdictions outside of the U.S. represented ~90–95% of global trading volume.³⁰ Coinbase, the U.S.'s largest exchange, held just 5–7% of global trading volume in 2025.³¹
- The U.S. represented only roughly 2–5% of growth throughout these years.
- Growth trends suggest this dynamic is getting worse, with U.S. CEX volume growth notably declining from 2020 through 2025.

Top 10 Centralized Exchanges: 2025 YoY growth

Rank	Exchange	2025 YoY Growth (%)	Headquarters / Domicile	
1	Binance	–0.5%	Cayman Islands / Abu Dhabi, UAE	Foreign
2	Bybit	–13.7%	Dubai, UAE	Foreign
3	MEXC	+90.9%	Seychelles	Foreign
4	Gate	+39.7%	Cayman Islands	Foreign
5	Crypto.com	+4.3%	Singapore	Foreign
6	Bitget	+45.5%	Seychelles	Foreign
7	OKX	–0.5%	San Jose, CA (redomiciled to the U.S. April 2025, but spent nearly its entire history as a foreign exchange)	U.S.-based
8	Coinbase	+2.8%	San Francisco, CA	U.S.-based
9	HTX	+35.6%	Seychelles	Foreign
10	Upbit	–18.9%	Seoul, South Korea	Foreign

Source: CoinGecko, 2025; domicile data added by CCI

2020 – 2025 Annual Volume of CEX's by Jurisdiction

Year	US CEX Volume %	Non-US CEX Volume %
2020	~8%	~92%
2021	~9%	~91%
2022	~8%	~92%
2023	~8%	~92%
2024	~8%	~92%
2025	~7–8%	~92–93%

Source: CoinGecko, 2025

2020 – 2025 Annual Volume Growth of CEX's by jurisdiction

Year	US CEX Growth %	Non-US CEX Growth %
2020–2021	~10–15%	~85–90%
2021–2022	~5–10%	~90–95%
2022–2023	~5–10%	~90–95%
2023–2024	~5–8%	~92–95%
2024–2025	~2–5%	~95–98%

Source: CoinGecko, 2025

Stablecoin Issuers

Stablecoins — the "digital dollar" layer of the crypto economy — are a strategic asset for U.S. financial power. The GENIUS Act established dollar-denominated stablecoins as the benchmark for digital asset payments; market structure legislation is critical to do the same for the broader U.S. digital asset market.

Despite the critical importance of stablecoins to drive digital dollar dominance, the dominant stablecoin issuer is not American.

- As of late July 2026, the total stablecoin market cap is roughly \$310 billion.³² In March, growth was up 50% year over year.³³
 - USDT (Tether) comprises \$184 billion (~59%). Tether (USDT) is registered in El Salvador and operates outside U.S. regulatory jurisdiction.
 - The dominant U.S. based issuer, USDC (Circle), comprises only \$72 billion (~23%).³⁴

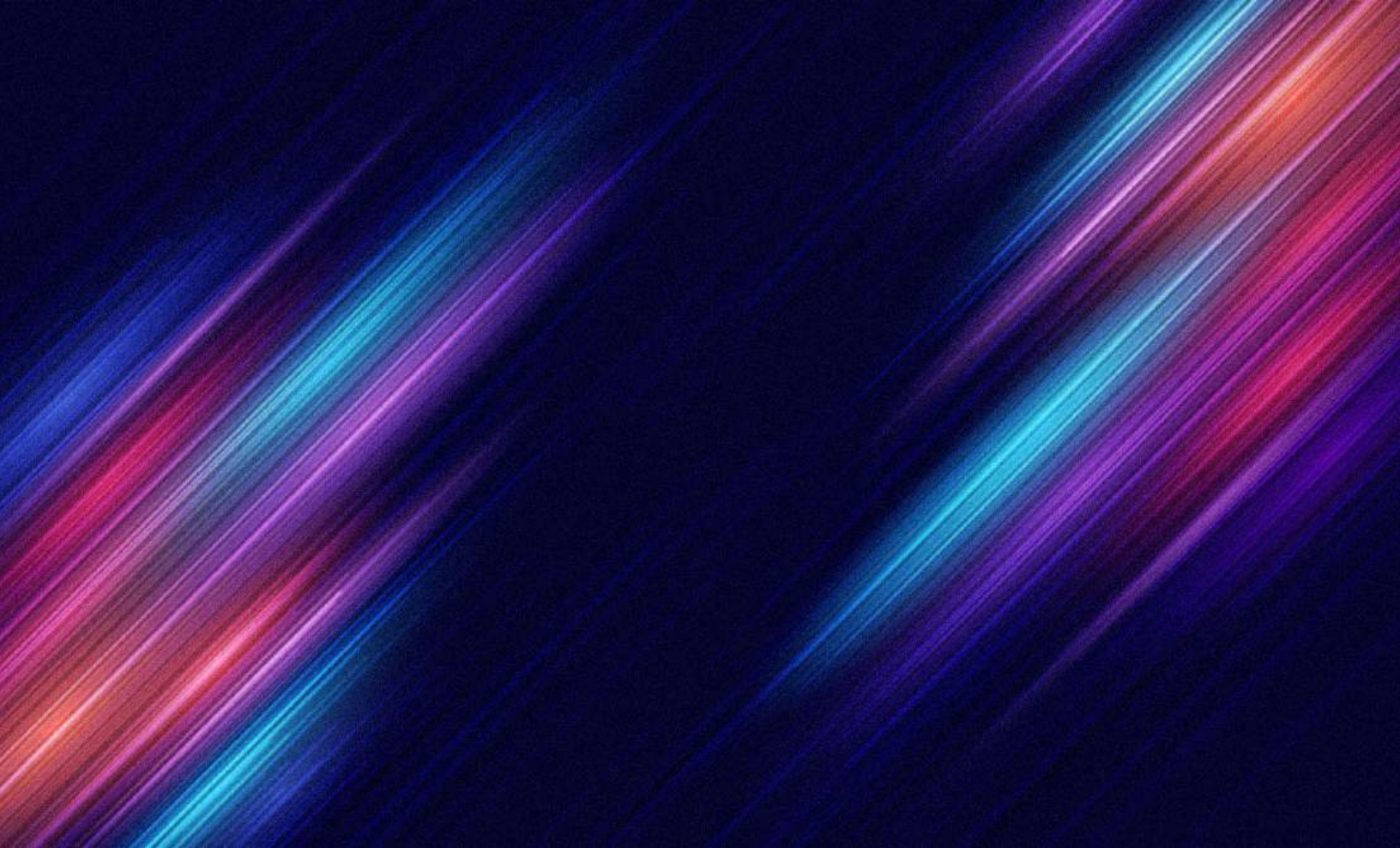
STABLECOIN MARKET SHARE

59% Largest stablecoin issuer (Tether)

23% Largest U.S. issuer (Circle)

While the GENIUS Act has not yet been fully implemented, it has helped to drive significant institutional interest in digital assets.

- Growing interest in stablecoins coincides with a rise in institutional activity around stablecoins:
 - Major traditional financial institutions and payment networks, including Fidelity, have launched their own stablecoin products.³⁵
 - Crypto platforms such as Kraken, MetaMask, and Crypto.com, among others, have introduced stablecoin payments that are linked to cards.³⁶
 - Major payment processors such as Stripe, Mastercard, and Visa have launched products that empower consumers to spend stablecoins via traditional payment rails.³⁷
 - Other platforms such as Circle and Paxos have sought to address merchant settlement for stablecoin payments.³⁸
- Transaction volume on the largest U.S. based stablecoin issuer grew 263% year over year as of Q1 2026, making U.S.-issued stablecoins dominant in payments, according to Visa.³⁹



V. The Importance of Onshoring Innovation in the US

The Importance of Onshoring Innovation in the U.S.

Capital, talent, and market activity are path-dependent. There is a critical agglomerative effect to locating industry in the U.S. Once firms build compliance, talent, and physical infrastructure abroad, it becomes harder to come back to the U.S.

Builders

People building in the ecosystem are a critical driver of infrastructure and capital.

Investment tends to follow developers in crypto.

- Ethereum, combined with its L2s, was the top destination for new developers in 2025, which correlates with it attracting the highest levels of VC investment. Solana is one of the fastest-growing ecosystems, with builder interest increasing by 78% in the last two years.⁴⁰

However, current trends overall are unfavorable for crypto talent in the U.S.

- According to Electric Capital, as of 2026, approximately 80% of crypto developers now live outside the United States, and the U.S. proportion of global developer share has dropped by 51% over nearly ten years (from 38% share to 19%).⁴¹

80% Crypto developers live outside the U.S.

51% Decline in proportion of global developers over 10 years



- In research conducted by CCI with the W.K. Kellogg Foundation on underrepresented builders in crypto:⁴²
 - 1 in 10 builders we spoke with indicated they had halted potential offerings or shut down products for fear of possible regulatory action, citing an inability to comply in the absence of clear policy.
 - 40% indicated they would consider moving offshore if they had the ability to do so.

1 in 10

Builders act on fear from unclear policies

40%

Builders would consider moving offshore



- Some suggest that regulatory headwinds have provided further encouragement for U.S. based developers to shift focus to AI, which is perceived to have faster adoption and offer a more immediate, less regulatorily constrained path to productivity.⁴³

Industry has called for protections for software developers in market structure to ensure against the erosion of domestic talent.

- The DeFi Education Fund and more than 110 industry partners, including CCI, issued a letter calling for protections for open-software developers in market structure.⁴⁴

Physical Infrastructure: Staking & Mining

Onshoring crypto infrastructure creates durable, place-based investment and employment that compounds over time (similar to any capital-intensive manufacturing or data infrastructure sector).

The United States already holds the largest share of Bitcoin mining globally by a wide margin. ⁴⁵

- This is not a legacy position — it was earned after China banned mining in 2021 and U.S. regulatory and energy conditions made the country the natural successor (while China reportedly recovered its share of overall mining, it was through largely underground operations).⁴⁶
- According to research from The Perryman Group, Bitcoin mining contributes over \$4.1 billion in annual U.S. gross product, supports more than 31,000 jobs nationwide, and generates upwards of \$2.5 billion in personal income.⁴⁷
- CCI research found that Bitcoin mining is uniquely suited to support the energy transition due to its flexibility, consistency, and transparency — miners can rapidly adjust demand in response to grid conditions, serve as a consistent buyer for stranded and renewable energy that would otherwise be curtailed, and convert harmful byproducts like flared gas into productive use.⁴⁸
- Concentrating hashrate domestically is a national security concern. As one analysis frames it: "The more hash power that resides in a given country, the more influence the state could have in protecting its interests... Having a stake in global hashrate is key. By fostering, rather than banning domestic mining industries, nations can ensure that control over the network does not fall into the hands of their enemies."⁴⁹

\$4.1 billion

Bitcoin mining annual contribution to U.S. gross product

31,020+

Jobs supported nationwide by Bitcoin mining

Staking secures billions in proof-of-stake networks, supporting a growing base of activity and use cases. ⁵⁰

- Today, over \$386 billion of value is secured by staking on proof-of-stake networks, with approximately \$70 billion in assets directly staked – a significant expansion since Ethereum (the largest proof-of-stake network by volume) first transitioned from proof-of-work to proof-of-stake in 2022.⁵¹

\$386+ billion

value secured by staking on
proof-of-stake networks

\$70 billion

assets directly staked

- Individuals are increasingly participating in the validation of these networks; for example, annual reports from Coinbase – a major retail staking provider – show that retail staked assets on the platform grew in value by 62% from 2023 to 2024 alone.⁵²
- Staking does not have the same "51% attack" dynamics as mining, but the geographic distribution of validators affects network resilience, censorship resistance, and compliance posture – emphasizing the importance of locating infrastructure domestically.

- The use cases that staking secures on proof-of-stake networks continues to expand:
 - New networks are now increasingly built for specific use cases such as stablecoins, fintech infrastructure, and data availability – as well as non-financial use cases such as digital identity, supply chain management, and physical infrastructure management for telecommunications and decentralized computing.
 - For example, SpruceID, which operates primarily on Ethereum, has launched digital identity pilots with the California Department of Motor Vehicles, the Utah Department of Government Operations, and the federal Department of Homeland Security.⁵³
 - In another example, BUIDL is BlackRock's tokenized money-market fund, and the largest tokenized Treasury fund in the world at roughly \$2.5 billion, giving institutions an onchain, yield-bearing alternative to idle stablecoin balances. BUIDL is now used across digital-asset markets as trading, DeFi, and off-exchange collateral within a tokenized real-world-asset market that surpassed \$30 billion globally in 2026.⁵⁴

Without clear rules, uncertainty penalizes U.S.-based infrastructure and pushes validators abroad.

- In addition to market structure, clear rules on taxation are critical to securing U.S. digital infrastructure. A forthcoming report by CCI will explore staking tax policy specifically.

National Security Implications

Movement of industry and talent removes the U.S.'s ability to influence the next generation of financial and digital infrastructure.

- The White House considers reversing the decline of blockchain development in the U.S. as strategically important.⁵⁵
- American users will continue to seek out crypto regardless of whether it is regulated or not.
- When globally significant liquidity pools and intermediaries sit outside the U.S. supervisory perimeter, strategic threats can play out through infrastructure that Washington does not directly regulate.

America's adversaries already understand the stakes, seeing blockchain as strategic rather than speculative.

- China has invested heavily in blockchain infrastructure through its Blockchain-based Service Network (BSN), which integrates decentralized tools into its Digital Silk Road initiative to achieve first-mover advantage.⁵⁶
- China has been clear about its intention to leverage its pilot e-CNY (digital yuan) as part of its geopolitical competition with the U.S, though success has been mixed. Recently, China has pulled away from mainstream CBDC thinking, and as of January 1, 2026, has been offering earned interest on deposits.⁵⁷

Non-financial crypto use cases that are of strategic importance also require market structure legislation to scale.

- A broader class of decentralized technologies—spanning applications such as decentralized physical infrastructure (DePIN), decentralized computing, and decentralized digital identity (DID)—may hold the keys to protecting American networks, data, and economic competitiveness.
 - By distributing computing power, storage, and connectivity across networks, decentralized technologies limit the “attack surface” available to adversaries. They also reduce reliance on foreign-controlled infrastructure, particularly in semiconductors and cloud computing, where U.S. supply chains are dangerously exposed to its adversaries.⁵⁸
 - Such resources are critical to the United States' effort to achieve Artificial Intelligence dominance.⁵⁹ For example, decentralized computing platforms pool underutilized GPUs across global networks, enabling access to AI training capacity that is otherwise controlled by a handful of large firms.⁶⁰
- The Department of Commerce's recent notice of proposed rulemaking on compute exports recognizes that AI compute capacity is now a matter of national security. If centralized GPU supply chains are a vulnerability, then decentralized alternatives are part of the solution.⁶¹

Repatriation to U.S. and Expanding Investment Due to More Supportive Regulatory Momentum

The shift in U.S. regulatory posture since late 2024 (including the passage of the GENIUS Act and growing momentum toward the CLARITY Act) has begun to reverse years of regulatory migration.

Global firms are establishing U.S.-regulated products and federally supervised subsidiaries, while domestic companies are investing in new infrastructure, licenses, and product lines.

This activity represents the economic activity the CLARITY Act is designed to accelerate. However, this progress is early, with many company leaders citing movement as conditional on continued momentum. Key developments include:

Jito Foundation:

- The Jito Foundation, which builds MEV (maximal extractable value) infrastructure for Solana and secures approximately \$1.85 billion in TVL, announced in December 2025 that it was re-establishing core operations in the United States.⁶²
- The announcement came after passage of the GENIUS Act and ongoing work toward a market structure bill, which Jito's CEO Lucas Bruder cited as the turning point.⁶³
- Jito's CEO Lucas Bruder stated that the foundation had been forced offshore because "banks wouldn't service us, vendors wouldn't contract with us, and every product decision carried real but unquantifiable legal risk from a hostile and capricious regulatory agency gone rogue."⁶⁴

Circle:

- Circle applied to establish a national trust bank in June 2025, stating that federal supervision would strengthen the infrastructure supporting USDC and help the company meet anticipated requirements under the GENIUS Act.
- Following enactment of the law, the Office of the Comptroller of the Currency (OCC) conditionally approved First National Digital Currency Bank in December 2025. The new institution would oversee the USDC reserve and allow Circle to offer fiduciary digital-asset custody services to institutional customers.⁶⁵
- Circle has continued to expand alongside the new framework. At the end of the first quarter of 2026, USDC circulation stood 28% higher than a year earlier, while quarterly onchain transaction volume had increased 263% to \$21.5 trillion.⁶⁶

Kraken:

- Kraken has publicly stated that regulatory clarity spurs investment, building, and hiring, and that market structure legislation would expand the effects of the GENIUS Act to the rest of the digital asset market.⁶⁷ It has made several major recent investments to expand its regulated U.S.

trading infrastructure. While much of this activity is regulated by the Commodity Futures Trading Commission (CFTC) and Securities and Exchange Commission (SEC), it represents substantial capital investments into American- regulated market infrastructure.

- For example, in March 2025, the company agreed to acquire U.S. retail futures platform NinjaTrader for \$1.5 billion, adding a business serving approximately two million traders and accelerating Kraken's expansion across regulated asset classes.⁶⁸
- In October 2025, Kraken acquired CFTC-regulated Small Exchange for another \$100 million, providing the foundation for a fully U.S.-based derivatives platform offering futures and options.⁶⁹

Fidelity Digital Assets:

- In December 2025, Fidelity Digital Assets received conditional approval to convert to a national trust bank, and launched its first stablecoin, the Fidelity Digital Dollar, in February 2026. The token is issued by Fidelity Digital Assets, National Association, and is available to both retail and institutional investors through Fidelity platforms.⁷⁰
- Fidelity also launched the onchain share class of its Fidelity Treasury Digital Fund in 2025, with \$202 million represented onchain by September 2025.⁷¹
- These launches represent a significant commitment by one of the country's largest financial institutions to building regulated digital-dollar and tokenization products in the United States.

CoinList:

- A token launch and sale platform that had excluded U.S. investors entirely since 2019 due to SEC enforcement risk, CoinList officially reopened access to American investors in 2025.
- CoinList launched a new token sale product for U.S. accredited investors, stating: "American investors were once at the center of compliant token sales, but since 2019 they've been shut out of early access to many of the industry's most important projects, even as the global crypto market cap (ex-BTC) grew 18x."⁷²

Nomura/Laser Digital:

- Laser Digital, the Zurich-headquartered digital-asset subsidiary of Japanese financial institution Nomura, has moved to establish a federally supervised U.S. banking operation. The company applied for a national trust bank charter in January 2026 and received conditional approval from the Office of the Comptroller of the Currency in May.⁷³
- The application represents a concrete decision by a foreign digital-asset firm to build regulated financial infrastructure under U.S. federal supervision, reported to have been encouraged by the clarity provided by policies including the GENIUS Act in increasing institutional confidence in stablecoins and tokenized assets.⁷⁴

Expanding Federal Charters and Licensing:

- Reflecting a wider movement toward building digital-asset infrastructure within the U.S. federal regulatory perimeter as momentum has grown toward a clearer regulatory perimeter as momentum has

grown toward a clearer regulatory environment, a number of digital asset firms have sought OCC national trust charters and other federal regulatory licenses.

- In 2025, there were 14 applications to the OCC for de novo limited-purpose national trust bank charters—almost as many as were filed during the previous four years combined.⁷⁵ In December 2025, the OCC conditionally approved national trust-bank applications for five companies, including Circle and Fidelity (see above for more detail).⁷⁶
- Federal charter approvals have coincided with substantial new investment and product development in U.S. operations.

Early repatriations and investments due to regulatory momentum provide an early indication of the economic activity that comprehensive market structure legislation could accelerate – but progress remains incomplete.

The GENIUS Act establishes a federal framework for payment stablecoins, but much of the broader digital-asset market still lacks a workable statutory pathway.

Passage of the CLARITY Act would extend the same principle—clear obligations coupled with a viable route to compliance—to exchanges, brokers, developers, and other market participants.



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Footnotes

1. Sandra Waliczek, "A digital economy at an inflection point: What to expect for digital assets in 2026," World Economic Forum, January 13, 2026. Available at: <https://www.weforum.org/stories/2026/01/digital-economy-inflection-point-what-to-expect-for-digital-assets-in-2026/>
2. The Wall Street Journal, "Digital Asset Rules Need Clarity," April 8, 2026. Available at: <https://www.wsj.com/opinion/digital-assets-rules-need-clarity-6dfcab70>
3. Securities Industry and Financial Markets Association, "Capital Markets Factbook," July 28, 2025. Available at: <https://www.sifma.org/research/statistics/fact-book>
4. United States Department of the Treasury, "Remarks by Under Secretary for International Affairs Jay Shambaugh at the Third Conference on the International Roles of the U.S. Dollar hosted by the Federal Reserve Board and the Federal Reserve Bank of New York," May 20, 2024. Available at: <https://home.treasury.gov/news/press-releases/jy2352>
5. World Bank Group, "Market capitalization of listed domestic companies (current US\$)," updated continuously. Available at: <https://data.worldbank.org/indicator/CM.MKT.LCAP.CD>
6. CoinGecko, "Global Cryptocurrency Market Caps," updated continuously, accessed July 2026. Available at: <https://www.coingecko.com/en/charts>
7. Statista, "Stocks – United States," Dashboard. Available at: <https://www.statista.com/outlook/fmo/stocks/united-states#market-capitalization>
8. World Gold Council, "Gold Market Primer: Market size and structure," April 1, 2026. Available at: <https://www.gold.org/goldhub/research/market-primer/gold-market-primer-market-size-and-structure>
9. National Crypto Association, "2026 State of Crypto Holders Report," May 2026. Available at: <https://nca.org/2026%20Annual%20State%20of%20Crypto%20Holders%20Report.pdf>
10. National Crypto Association, *supra* note 9.
11. HarrisX, "Voter Perceptions and Support for the Clarity Act: National survey of voters shows bipartisan support for American leadership in cryptocurrencies and passing the Clarity Act," May 2026. Available at: <https://www.harrisx.com/posts/national-survey-of-voters-shows-bipartisan-support-for-american-leadership-in-cryptocurrencies-and-passing-the-clarity-act>
12. PayPal Newsroom, "Crypto Goes Mainstream: 4 in 10 U.S. Merchants Accept Digital Assets," January 27, 2026. Available at: <https://newsroom.paypal-corp.com/2026-01-27-Crypto-Goes-Mainstream-4-in-10-US-Merchants-Accept-Digital-Assets>
13. Steve Gallucci and John Goff, "Crypto is gaining currency with North American CFOs," Deloitte Insights, July 31, 2025. Available at: <https://www.deloitte.com/us/en/insights/topics/business-strategy-growth/2q-2025-cfo-signals-survey.html>
14. Steve Gallucci and John Goff, *supra* note 13.
15. United States Chamber of Commerce, "Empowering Small Business: The Impact of Technology on U.S. Small Business, Fourth Edition," August 13, 2025. Available at: <https://www.uschamber.com/assets/documents/20251621-CTEC-Empowering-Small-Business-Report-2025-v1-r10-Digital-FINAL.pdf>
16. United States Chamber of Commerce, *supra* note 15.
17. United States Chamber of Commerce, *supra* note 15.

Footnotes

-
18. Center for a Digital Future: ImpactBase, “Helium Case Study,” Database. Available at: <https://www.centerfordigitalfuture.org/blog/60kqfdgb4f8kljqylj4ujvaqr1bx5y-364pg-bskhw-58gfs-c9t7w-6ec5j>
 19. Helium Blog (Medium), “Helium 2025: Year in Review,” December 19, 2025. Available at: <https://blog.helium.com/2025-a622e55e4f6d>
 20. See Fintech News Middle East, “UAE Emerges as Crypto Powerhouse in MENA, Home to 1,800+ Industry Stakeholders,” May 24, 2023, available at: <https://fintechnews.ae/l6873/fintechdubai/uae-emerges-as-crypto-powerhouse-in-mena-home-to-1800-industry-stakeholders>; TradingView, “Here’s why crypto is moving to Dubai and Abu Dhabi,” January 14, 2026, available at: <https://www.tradingview.com/news/coindotgraph:5881ad19f094b:0-here-s-why-crypto-is-moving-to-dubai-and-abu-dhabi/>; Blockhead, “Dubai’s Crypto Moment Is Over – For Now,” April 10, 2026, available at: <https://www.blockhead.co/2026/04/10/dubais-crypto-moment-is-over-for-now/>; Fintech News Singapore, “The Latest List of Licensed Cryptocurrency Providers in Singapore (2026),” January 7, 2026, available at: <https://fintechnews.sg/latest-list-licensed-cryptocurrency-providers-in-singapore/>; Yahoo! Finance, “Singapore leads global crypto job opportunities per capita,” May 29, 2025, available at: <https://finance.yahoo.com/news/singapore-leads-global-crypto-job-100823173.html>; TRM Labs, “Unpacking Singapore’s Financial Services and Markets Act: What Crypto Firms Need to Know,” June 26, 2025, available at: <https://www.trmlabs.com/resources/blog/unpacking-singapores-financial-services-and-markets-act-what-crypto-firms-need-to-know>; Suvashree Ghosh, “Singapore’s Unlicensed Crypto Exchanges to Weigh Exit,” Bloomberg, June 11, 2025, available at: <https://www.bloomberg.com/news/articles/2025-06-11/singapore-order-leads-unlicensed-crypto-exchanges-to-weigh-exit>; and Linh Bui, “How Europe Became the Global Hub for Crypto-Friendly Bank,” BeInCrypto, March 13, 2025, available at: <https://beincrypto.com/how-europe-became-the-global-hub-for-crypto-friendly-bank/>
 21. CoinGecko, “Spot Centralized Exchanges Report 2026,” April 9, 2026. Available at: <https://www.coingecko.com/research/publications/spot-centralized-exchanges-report-2026>
 22. Analysis by Crypto Council for Innovation of data from The Block, “Share of Trade Volume by Pair Denomination,” last visited May 2026. Available at: <https://www.theblock.co/data/crypto-markets/spot/share-of-trade-volume-by-pair-denomination>
 23. Chainalysis, “North America: Institutional Momentum and U.S. Bitcoin ETPs Propel Crypto Further Into the Mainstream,” October 17, 2024. Available at: <https://www.chainalysis.com/blog/north-america-crypto-adoption-2024/>
 24. See Written Testimony of Ji Hun Kim, Chief Executive Officer, Crypto Council for Innovation, before the United States Senate Committee on Agriculture, Nutrition, and Forestry, in a hearing entitled “Stakeholder Perspectives on Federal Oversight of Digital Commodities,” July 15, 2025, available at: https://www.agriculture.senate.gov/imo/media/doc/0191b61d-939c-565e-ee00-5fadab52e8c4/Testimony_Kim_07.15.2025.pdf; and Written Testimony of Ji Hun Kim, Chief Executive Officer, Crypto Council for Innovation, before the United States House of Representatives Committee on Financial Services, Subcommittee on Digital Assets, Financial Technology and Artificial Intelligence, in a hearing entitled “A Golden Age of Digital Assets: Charting a Path Forward,” February 11, 2025, available at: <https://docs.house.gov/meetings/BA/BA21/20250211/117872/HHRG-119-BA21-Wstate-KimJ-20250211.pdf>
 25. Shaun Paul Lee, “Market Share of Centralized Crypto Exchanges, by Trading Volume,” CoinGecko Research, April 17, 2026. Available at: <https://www.coingecko.com/research/publications/centralized-crypto-exchanges-market-share>
 26. Shaun Paul Lee, *supra* note 25.
 27. Shaun Paul Lee, *supra* note 25.
 28. National Crypto Association, *supra* note 9.
 29. Chainalysis, *supra* note 23.
-

Footnotes

30. Shaun Paul Lee, *supra* note 25.
31. Shaun Paul Lee, *supra* note 25.
32. CoinMarketCap, “Top Stablecoin Tokens by Market Capitalization,” Dashboard, as of July 29, 2026. Available at: <https://coinmarketcap.com/view/stablecoin/>
33. Will Canny, “Stablecoin market hits \$312 billion as banks, card networks embrace onchain dollars,” CoinDesk, March 10, 2026. Available at: <https://www.coindesk.com/business/2026/03/10/stablecoins-are-starting-to-reshape-payments-and-banking-macquarie-says>
34. CoinMarketCap, *supra* note 32.
35. See Elizabeth Howcroft and Tommy Reggiori Wilkes, “Major banks explore issuing stablecoin pegged to G7 currencies,” Reuters, October 10, 2025, available at: <https://www.reuters.com/business/finance/major-banks-explore-issuing-stablecoins-pegged-g7-currencies-2025-10-10/>; and Fidelity Newsroom, “Fidelity Investments Expands Digital Asset Investment Lineup with Stablecoin Launch: Fidelity Digital Dollar (FIDD),” February 4, 2026, available at: <https://newsroom.fidelity.com/pressreleases/fidelity-investments--to-expand-digital-asset-investment-lineup-with-stablecoin-launch--fidelity-dig/s/3b55e2d1-1dba-4120-9528-1e07e632f3f4>
36. See Mastercard Newsroom, “Mastercard unveils end-to-end capabilities to power stablecoin transactions – from wallets to checkouts,” April 28, 2025, available at: <https://www.mastercard.com/news/press/2025/april/mastercard-unveils-end-to-end-capabilities-to-power-stablecoin-transactions-from-wallets-to-checkouts/>; and Francisco Rodrigues, “Kraken Teams Up With Mastercard to Introduce Crypto Debit Cards,” CoinDesk, April 9, 2025, available at: <https://www.coindesk.com/business/2025/04/09/kraken-teams-up-with-mastercard-to-introduce-crypto-debit-cards>
37. See Stripe Newsroom, “Stripe accelerates the utility of AI and stablecoins with major launches,” May 7, 2025, available at: <https://stripe.com/newsroom/news/sessions-2025>; and Stephen Katte, “Mastercard links with Circle, Paxos for merchant stablecoin payments,” Cointelegraph, April 28, 2025, available at: <https://cointelegraph.com/news/mastercard-partners-circle-paxos-expand-stablecoin-support-merchants>
38. See PR Newswire, “Paxos Launches New Stablecoin Payments Platform,” October 15, 2024, available at: <https://www.prnewswire.com/news-releases/paxos-launches-new-stablecoin-payments-platform-302276303.html>; and PYMNTS, “Circle Launches Managed Payments for Stablecoin Settlement,” April 8, 2026, available at: <https://www.pymnts.com/cryptocurrency/2026/circle-launches-managed-payments-for-stablecoin-settlement/>
39. See Circle Internet Group, Incorporated, “First Quarter 2026 Financial Highlights and Operating Results,” United States Securities and Exchange Commission, May 11, 2026, available at: https://www.sec.gov/Archives/edgar/data/1876042/000187604226000148/final_05x11q1epr30.htm; and Guneet Kaur, “USDC Beats USDT With 67% Share as Stablecoin Payments Hit Record \$1.79T: Visa Data,” Yahoo Finance, July 7, 2026, available at: <https://finance.yahoo.com/markets/crypto/articles/usdc-beats-usdt-67-share-121810286.html>
40. Daren Matsuoka, Robert Hackett, Jeremy Zhang, Stephanie Zinn, and Eddy Lazzarin, “State of Crypto 2025: The year crypto went mainstream,” Andreessen Horowitz Crypto, October 22, 2025. Available at: <https://a16zcrypto.com/posts/article/state-of-crypto-report-2025/>
41. Electric Capital, “Developer Report Dashboard: Crypto Developer Geography Trends,” 2026. Available at: <https://www.developerreport.com/geography>
42. Renée Barton, “Building a More Equitable Web3,” Crypto Council for Innovation, July 2024. Available at: <https://static1.squarespace.com/static/66030e797dd6ff5a6c50d60d/t/66e22d3572faba5e03dadb5f/1726098751541/Building+a+More+Equitable+Web3+-+CCI.pdf>

Footnotes

-
43. See Gino Mattos, “Bitcoin is at risk of a talent drain because AI just created 1.3 million jobs,” CryptoSlate, February 14, 2026, available at: <https://cryptoslate.com/crypto-enters-a-16-day-danger-zone-as-top-crypto-operators-rotate-into-ai/>; and Simona Ram, “Crypto’s Developer Crisis: Why Builders Are Walking Away,” DailyCoin, April 15, 2025, available at: <https://dailycoin.com/cryptos-developer-crisis-why-builders-are-walking-away/>
 44. DeFi Education Fund, “DEF & 110+ Partners Submit Coalition Letter on Developer Protections in Market Structure,” August 27, 2025. Available at: <https://www.defieducationfund.org/def-110-partners-submit-coalition-letter-on-developer-protections-in-market-structure/>
 45. Hashrate Index, “Top 10 Bitcoin Mining Countries of 2026,” December 31, 2025. Available at: <https://hashrateindex.com/blog/top-10-bitcoin-mining-countries-of-2026/>
 46. See MacKenzie Sigalos, “U.S. officially the top destination for bitcoin miners, beating out China for the first time,” CNBC, October 13, 2021, available at: <https://www.cnbc.com/2021/10/13/us-beats-china-as-the-number-one-destination-for-bitcoin-miners.html>; and University of Cambridge Judge Business School, “Bitcoin Mining Map,” Dashboard, available at: https://ccaf.io/cbnsi/cbeci/mining_map. (Note that the last data available dates to January 2022, demonstrating the impact of Chinese policy changes.)
 47. MARA, “The Economic Impact of Bitcoin Mining: Jobs, Investment, & Energy Stability,” February 20, 2025. Available at: <https://www.mara.com/posts/the-economic-impact-of-bitcoin-mining-jobs-investment-energy-stability>
 48. Crypto Council for Innovation, “Proof of Work & Enabling the Energy Transition,” 2023. Available at: <https://cryptoforinnovation.org/proof-of-work-enabling-the-energy-transitions>. (The report documents nearly two dozen United States mining sites that collectively represent more than 3 gigawatts of new renewable energy added to the grid over the long run, while demonstrating the ability to balance grid instability by powering operations up or down within a 5–15 second timeframe.)
 49. Ben Caselin, “Why Bitcoin Mining Is a Matter of National Security,” CoinDesk, June 14, 2024. Available at: <https://www.coindesk.com/opinion/2022/04/04/why-bitcoin-mining-is-a-matter-of-national-security>
 50. Alison Mangiero and Renée Barton, “How Revising Tax Policy on Staking can Secure a Growing Sector of the Financial System,” Crypto Council for Innovation, March 12, 2026. Available at: <https://cryptoforinnovation.org/how-revising-tax-policy-on-staking-can-secure-a-growing-sector-of-the-financial-system/>
 51. See CoinGecko, “Top Blockchains by Total Value Locked,” Dashboard, available at: <https://www.coingecko.com/en/chains>; and CoinGecko, “Top Proof of Stake Coins by Market Capitalization,” Dashboard, available at: <https://www.coingecko.com/en/categories/proof-of-stake-pos>. (Values as of July 1, 2026.)
 52. Aggregated data on the total number of United States citizens and residents is not publicly available, and 1099-MISC reportable income from staking is not isolated from aggregated “Other income.” See United States Securities and Exchange Commission, “Form 10-K: Coinbase Global, Incorporated, for the Fiscal Year Ended December 31, 2023,” available at: <https://www.sec.gov/Archives/edgar/data/1679788/000167978824000022/coin-20231231.htm>; and United States Securities and Exchange Commission, “Form 10-K: Coinbase Global, Incorporated, for the Fiscal Year Ended December 31, 2024,” available at: <https://www.sec.gov/Archives/edgar/data/1679788/000167978825000022/coin-20241231.htm>
 53. SpruceID, “Success Stories,” Website. Available at: <https://blog.spruceid.com/spruceid-partners-with-ca-dmv-on-mdl/>
 54. Krisztian Sandor, “BlackRock Deepens Tokenization Push with New Onchain Fund Offerings,” CoinDesk, May 9, 2026. Available at: <https://www.coindesk.com/business/2026/05/09/blackrock-deepens-tokenization-push-with-new-onchain-fund-offerings>
-

Footnotes

55. National Economic Council President's Working Group on Digital Asset Markets, "Strengthening American Leadership in Digital Financial Technology," January 23, 2025. Available at: <https://www.whitehouse.gov/wp-content/uploads/2025/07/digital-Assets-Report-EO14178.pdf>
56. See Anoosh Kumar, "China's Blockchain Playbook: Infrastructure, Influence, and the New Digital Order," Center for Strategic and International Studies, May 5, 2025, available at: <https://www.csis.org/blogs/strategic-technologies-blog/chinas-blockchain-playbook-infrastructure-influence-and-new>; and Alice Ekman, "China's blockchain and cryptocurrency ambitions," European Union Institute for Security Studies, July 13, 2021, available at: <https://www.iss.europa.eu/publications/briefs/chinas-blockchain-and-cryptocurrency-ambitions>
57. See Roger Huang, "A 2025 Overview Of The E-CNY, China's Digital Yuan," Forbes, July 15, 2025, available at: <https://www.forbes.com/sites/digital-assets/2024/07/15/a-2024-overview-of-the-e-cny-chinas-digital-yuan/>; Lee Ying Shan and Evelyn Cheng, "China doubles down on promoting yuan as confidence in U.S. dollar takes a beating," CNBC, June 24, 2025, available at: <https://www.cnbc.com/2025/06/25/china-promotes-yuan-as-dollar-confidence-falters.html>; Martin Chorzempa, "China gives up on state-backed digital cash: The US and Europe should take note—for different reasons," Peterson Institute for International Economics, February 10, 2026, available at: <https://www.piie.com/blogs/realtime-economics/2026/china-gives-state-backed-digital-cash-us-and-europe-should-take-note>; and Oihyun Kim, "China Breaks CBDC Orthodoxy: Digital Yuan to Pay Interest Starting 2026," Yahoo! Finance, December 31, 2025, available at: <https://finance.yahoo.com/news/china-breaks-cbdc-orthodoxy-digital-050942170.html>
58. Kyle Chan, Gregory Smith, Jimmy Goodrich, Gerard DiPippo, and Konstantin F. Pilz, "Full Stack: China's Evolving Industrial Policy for AI," RAND Corporation, June 26, 2025. Available at: <https://www.rand.org/pubs/perspectives/PEA4012-1.html>
59. Konstantin F. Pilz, Yusuf Mahmood, and Lennart Heim, "AI's Power Requirements Under Exponential Growth," RAND Corporation, January 28, 2025. Available at: https://www.rand.org/pubs/research_reports/RRA3572-1.html
60. See Reflexivity Research, "Overview of Decentralized Compute," available at: <https://www.reflexivityresearch.com/free-reports/overview-of-decentralized-compute>; and Juan Pablo Perez, "The AI Boom Is Giving Rise to 'GPU-as-a-Service,'" Institute of Electrical and Electronics Engineers Spectrum, January 20, 2025, available at: <https://spectrum.ieee.org/gpu-as-a-service>
61. Bureau of Industry and Security, United States Department of Commerce, "Taking Additional Steps To Address the National Emergency With Respect to Significant Malicious Cyber-Enabled Activities," Federal Register, January 29, 2024. Available at: <https://www.federalregister.gov/documents/2024/01/29/2024-01580/taking-additional-steps-to-address-the-national-emergency-with-respect-to-significant-malicious>
62. Jito Blog, "The Jito Foundation Comes Home," December 17, 2025. Available at: <https://www.jito.network/blog/the-jito-foundation-comes-home/>
63. Gopal Solanky, "Jito Foundation Moves Core Operations Back to US Amid Regulatory Shift," The Crypto Times, December 17, 2025. Available at: <https://www.cryptotimes.io/2025/12/18/jito-foundation-moves-core-operations-back-to-us-amid-regulatory-shift/>
64. Gopal Solanky, *supra* note 63.
65. See Circle, "Circle Receives Conditional Approval from OCC for National Trust Charter," December 12, 2025, available at: <https://investor.circle.com/news/news-details/2025/Circle-Receives-Conditional-Approval-from-OCC-for-National-Trust-Charter/>; and Office of the Comptroller of the Currency, "OCC Announces Conditional Approvals for Five National Trust Bank Charter Applications," December 12, 2025, available at: <https://www.occ.gov/news-issuances/news-releases/2025/nr-occ-2025-125.html>
66. Circle, "Circle Reports First Quarter 2026 Results," May 11, 2026. Available at: <https://www.circle.com/pressroom/circle-reports-first-quarter-2026-results>
67. Kraken Blog, "The cost of waiting: while the US debates crypto, the world is building," Jonathan Jachym, May 12, 2026. Available at: <https://blog.kraken.com/policy/the-cost-of-waiting-while-the-us-debates>
68. See Prakhar Srivastava, "Cryptocurrency Exchange Kraken to Buy NinjaTrader for \$1.5 Billion," Reuters, March 20, 2025, available at: <https://www.reuters.com/technology/kraken-acquire-ninjatrade-15-billion-deal-2025-03-20/>; and Kraken Blog, "Kraken to Acquire NinjaTrader: Introducing the Next Era of Professional Trading," March 20, 2025, available at: <https://blog.kraken.com/news/kraken-to-acquire-ninjatrade>

Footnotes

69. Manya Saini, "Kraken signs \$100 million deal for Small Exchange to bulk up US derivatives business," Reuters, October 16, 2025. Available at: <https://www.reuters.com/legal/government/kraken-signs-100-million-deal-small-exchange-bulk-up-us-derivatives-business-2025-10-16/>
70. Fidelity Newsroom, *supra* note 35.
71. Krisztian Sandor, "Fidelity's Tokenized Money Market Fund Rolled Out on Ethereum with Ondo Holding \$202 Million," CoinDesk, September 9, 2025. Available at: <https://www.coindesk.com/business/2025/09/09/fidelity-s-tokenized-money-market-fund-rolled-out-on-ethereum-with-ondo-holding-usd202m>
72. CoinList, "CoinList 2025: Year in Review," December 22, 2025. Available at: <https://blog.coinlist.co/coinlist-2025-year-in-review/>
73. George Steer and Joshua Franklin, "Nomura-Backed Crypto Group Laser Digital Seeks United States Banking Licence," Financial Times, January 27, 2026. Available at: <https://www.ft.com/content/74b07307-d105-4ce4-9f9d-25b35f242a7e>
74. Reuters, "Nomura-Backed Laser Digital Secures Conditional Approval for United States Banking License," May 29, 2026. Available at: <https://www.reuters.com/technology/nomura-backed-laser-digital-secures-conditional-approval-us-banking-license-2026-05-29>
75. George Steer and Joshua Franklin, *supra* note 73.
76. Office of the Comptroller of the Currency, *supra* note 65.